

TENTATIVE RULING

Case: **Stewart v. The Regents of the University of California et al.**
Case No. CV2024-2139

Hearing Date: **August 20, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff Ashley Stewart’s motion for leave to file third amended complaint is **DENIED**. (Code Civ. Proc., § 473, subd. (a); Cal. Rules of Court, rule 3.1324.) The Court finds that plaintiff provides little explanation for her delay in bringing this motion and why the amendment is necessary and proper at this stage of the litigation, particularly considering defendants The Regents of the University of California and James Wood, DVM’s (collectively, “defendants”) pending motions for summary judgment. (Cal. Rules of Court, rule 3.1324(b); *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176 [it would be “patently unfair” to allow a plaintiff to defeat summary judgment “by allowing them to present a ‘moving target’ unbounded by the pleadings”]; *Record v. Reason* (1999) 73 Cal.App.4th 475, 486–487; Kraus Decl.) The Court further finds that allowing the proposed amendment will prejudice defendants. (*Melican, supra*, 151 Cal.App.4th at p. 175.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.